STOVES & OPEN FIRES IN EXISTING CHIMNEYS

DOES AN EXISTING CHIMNEY NEED LINING?

SHORT ANSWER

NOT AUTOMATICALLY

The Building Regulations don't say every stove or open fire must have a liner. They say the chimney must be **checked and shown to be suitable** for the appliance and fuel. A chimney that passes can be used as it is. One that fails must be repaired or relined first.

1965
The first year new chimneys had to be built with liners. Older ones were built unlined, by design.

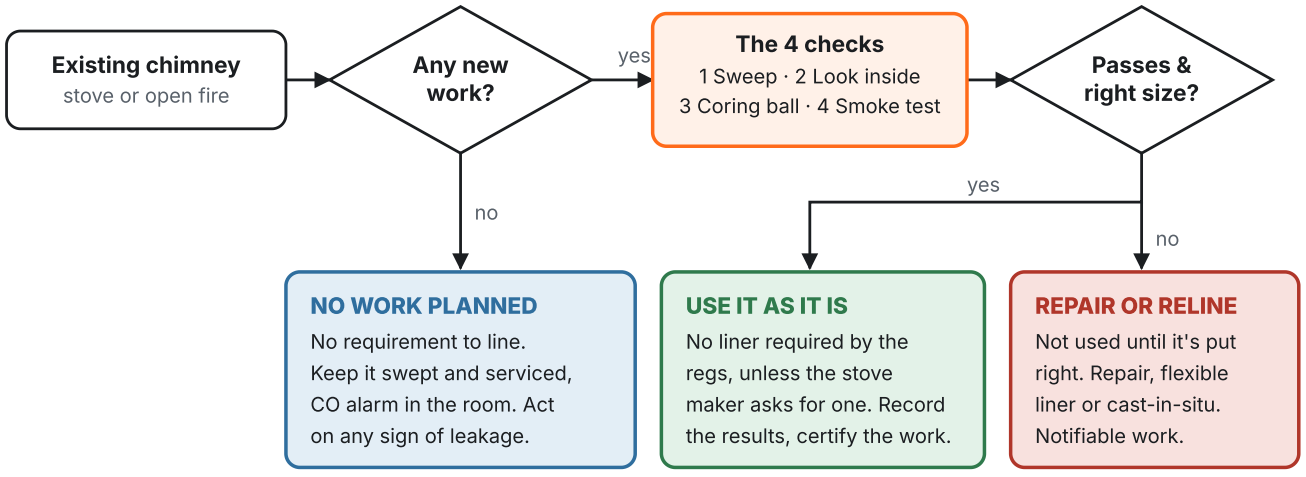
4 checks
Sweep, look inside, coring ball, smoke test. Passing them is what the regulations ask for.

0
Automatic lining requirements for an existing chimney in Approved Document J.

1 alarm
Carbon monoxide alarm required in any let room with a fixed combustion appliance.

HOW THE DECISION IS MADE

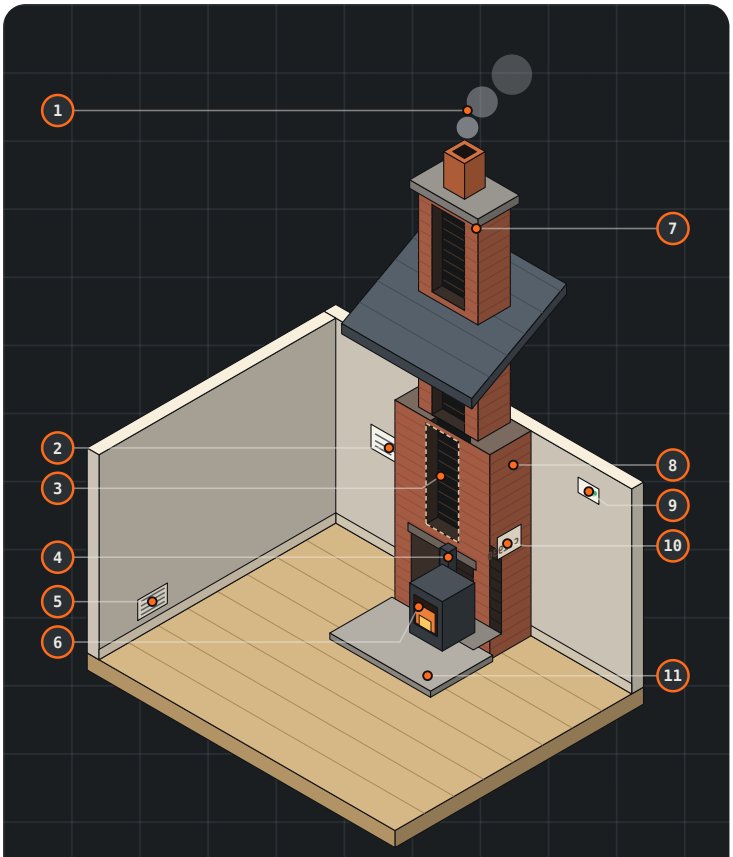
ADJ PARA 1.36 · APPENDIX E3



The Clean Air Act isn't the test. It controls smoke and fuel in smoke control areas, not how chimneys are built. "Pre-Clean Air Act" doesn't make a chimney non-compliant. The date that matters for liners is 1965. See page 5.

WHAT THE REGULATIONS COVER

ANATOMY OF A CHIMNEY



Cut away to show the flue inside the brickwork · numbers match the website

1. **Smoke & the Clean Air Act**
   In a smoke control area, chimney smoke can bring a **£175–£300** penalty. Burn smokeless fuel, or use a Defra-exempt stove.

2. **Notice plate & paperwork**
   Plate shows the flue type, size and install date. Keep the certificate, smoke test and sweep records.

3. **The flue: the key question**
   An existing flue must be checked: sweep, inspect, coring ball, smoke test. Pass and the right size: usable unlined. Fail: repair or reline. Para 1.36, Appendix E3.

4. **Stove pipe & register plate**
   Single-wall pipe **3 × D** from combustibles. Bends no more than **45°**. Rear horizontal run **150 mm** max. The whole flue must be sweepable.

5. **Air vent**
   Stove in a pre-2008 home: **550 mm²** per kW above 5 kW. Open fire: **50%** of the throat area.

6. **The appliance**
   Install to the maker's instructions. Where they ask for more than the regs, including a liner, they win. New stoves must meet Ecodesign.

7. **Outlet height**
   Within 600 mm of the ridge: **600 mm** above it. Elsewhere: **1 m** above the roof line, or level with the ridge, with **2.3 m** clearance.

8. **Chimney walls**
   Combustibles at least **200 mm** from the inside of a flue and **40 mm** from the outside of the chimney.

9. **CO alarm**
   In the room, **1–3 m** from the appliance. Landlords: in every room with a fixed combustion appliance, old or new.

10. **Age of the house**
    New chimneys had to be lined from **1965**. Older chimneys aren't non-compliant because of their age.

11. **Hearth**
    Stove in a recess: **125 mm** thick, **225 mm** in front (**300** if used door-open), **150 mm** each side. Open fire: **500 mm** in front.

> **Want to click through it?** The interactive version, with every part and setting, is at **pobajobs.co.uk/builds/flues**.

YOUR HOMES

TWO SITUATIONS

FITTING A STOVE

New, replacement, or open fire swapped for a stove

TEST FIRST

- An unlined, pre-1965 chimney **can legally be used** if it passes the checks and suits the appliance.
- A previous stove is good evidence, but the new install is still tested on the day.
- Notifiable work: a registered installer self-certifies it, or building control approves it.
- A flue much bigger than the stove needs may be lined to reduce its area (para 1.38). That's a judgement made per chimney.

EXISTING, NO WORK

Stove or fire already in and staying

NO LINER NEEDED

- Building Regulations apply to building work. A working installation nobody is altering doesn't have to be relined to today's guidance.
- **Still required:** CO alarm in the room (social landlords since 1 Oct 2022), regular sweeping and servicing.
- Act on signs of leaks: staining, smoke in other rooms, a CO alarm going off. Under Awaab's Law, emergency hazards must be made safe within 24 hours.

WHEN A LINER OR REPAIR IS NEEDED

Fails the smoke test
Repair or reline before use. Relining is building work in its own right.
ADJ 1.35, 1.37

Old steel liner, new stove
Replace the liner too, unless it's shown to be recent and in good condition.
ADJ 1.39

The maker requires it
If the stove's instructions call for a liner, fit one. They take priority.
Manufacturer's instructions

Flue far too big
An oversized flue can be unsafe. Lining reduces its area. Judged on site.
ADJ 1.38

Flue too small
Can't be used for that appliance. Choose a smaller one or build a new flue.
ADJ Table 2

No chimney at all
A new system chimney (e.g. twin-wall) is needed. That's new work, not relining.
ADJ Section 1

WHO CAN DO WHAT

ROUTE	SWEEP & CERTIFY SWEEPING	SELF-CERTIFY AN INSTALL OR LINER	NOTES
HETAS registered installer competent person scheme	✓	✓	Registered for that category of work. No building control fee.
HETAS Approved Chimney Sweep	✓	✗	HETAS qualification (H003, H005 or H009), refreshed every 5 years.
Sweep associations NACS, Guild, APICS, Sweep Safe	✓	✗	Each has its own entry rules and certificates.
Building control	–	Approves others' work	The route when the installer isn't on a scheme. A fee applies.

HETAS registration isn't a legal requirement. What the law requires is that an install is either self-certified through a scheme or approved by building control.

IF A CHIMNEY FAILS, OR THE MAKER ASKS

TYPES OF LINER

Clay and steel aren't the only options. Every lining for a stove or open fire has to be suitable for solid fuel, and relining is notifiable work.



Clay / ceramic liners

BS EN 1457 · rigid

Built in, socket end up. Standard in chimneys since 1965 and can last the life of the building. 20–25 mm walls shrink the flue.



Pumice / concrete liners

BS EN 1857 · rigid

Rigid sections or blocks. Pumice insulates well, so it's recommended for wood stoves. Installed like clay.



Pumped refractory concrete

Cast in-situ · ADJ 2.20

Concrete pumped round an inflatable former. Fills cracks and strengthens the stack. No British Standard: results depend on the installer.



Flexible steel, twin-skin

BS EN 1856-2 · 904L / 316Ti

Relining only (ADJ 1.40). Insulate for wood stoves with perlite or vermiculite, never fibreglass. Replace with a new appliance unless recent and sound (1.39).



Spray-on lining

About 7 mm · specialist

Sprayed up the cleaned flue. Keeps the most flue size and follows bends. Good for cracked clay liners. Get an insurance-backed guarantee.



Ceramic coating

About 4 mm · specialist

A plug pulled up the flue presses liquid lining into the walls and seals cracks. Barely reduces flue size. Usually a ten-year guarantee.



Twin-wall system chimney

BS EN 1856-1 · G50 / G60 typical

Not a liner: a complete insulated chimney for homes with none. Keep its rated gap to combustibles (below).

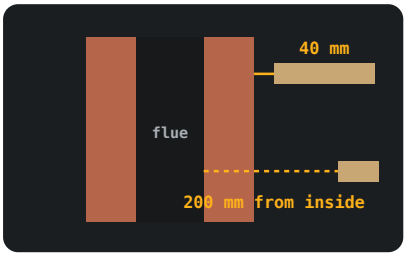


Single-skin flexi (gas/oil)

Never for solid fuel or wood

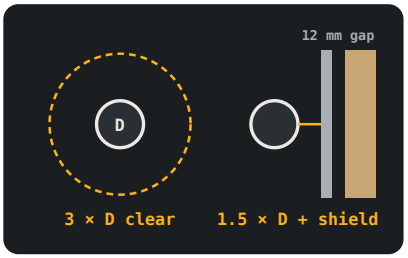
Light-gauge liner for gas fires, boilers and oil only. Not suitable for a stove or open fire.

CLEARANCES TO COMBUSTIBLES



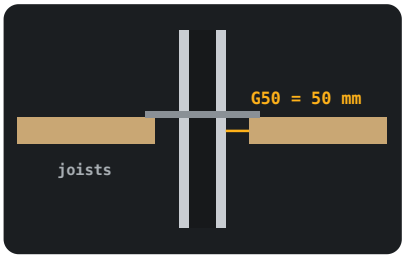
MASONRY CHIMNEY

- Combustibles at least **200 mm** from the inside of the flue.
- **40 mm** from the outside face (floorboards and skirting excepted).
- Metal fixings **50 mm** from the inside of the flue.



SINGLE-WALL STOVE PIPE

- At least **3 × its diameter** from combustibles: **450 mm** for a 150 mm pipe.
- **1.5 × D** behind a non-combustible shield that extends 1.5 × D past the pipe, with a **12 mm** air gap.
- Stove to chimney only: never through roof spaces, partitions, internal walls or floors (ADJ 2.14).



TWIN-WALL FLUE

- Keep the maker's rated gap, printed in its designation: **G50** = 50 mm. G50 and G60 are typical.
- Use the maker's fire-stop or support plates through floors and ceilings. Fire-rated parts or casing through compartment floors (1.46).
- Guard it in cupboards, storage and roof spaces (1.45). Sleeve through walls, and no hidden joints without access (1.43–1.44).

SMOKE, FUEL AND THE LAW

THE CLEAN AIR ACT

It covers what comes **out** of a chimney. How a chimney is built and tested is covered by Building Regulations Part J.

1952 — **The Great Smog**
Five days of coal smoke over London. About 4,000 extra deaths were counted at the time; later estimates go as high as 12,000.

1956 — **Clean Air Act**
For the first time, councils can declare smoke control areas, with grants to help people convert their fireplaces.

1965 — **Building Regulations, not the Clean Air Act**
New chimneys must be built with suitable liners. This is the date that matters for lining, and it applies to new chimneys only.

1968 — **Clean Air Act**
Emitting dark smoke from a chimney becomes an offence.

1993 — **Clean Air Act**
Replaces the 1956 and 1968 Acts. Councils declare smoke control areas under it. Authorised fuels and exempt appliances are listed under it.

2021 — **Wet wood rules**
From 1 May, wood sold in amounts under 2 m³ must be certified Ready to Burn: 20% moisture or less. Bigger loads come with drying advice.

2022 — **Smoke penalties**
From 1 May, councils can issue £175–£300 civil penalties for chimney smoke in a smoke control area. Using an exempt appliance is no longer a defence.

2023 — **House coal**
From 1 May, traditional house coal can no longer be sold in England.

2026 — **Consultation**
On 22 January, Defra opened a UK-wide consultation on further measures for domestic burning. No decision yet. Existing stoves are unaffected for now.

IN A SMOKE CONTROL AREA

Check a home at gov.uk/smoke-control-area-rules or with Dorset Council

NO SMOKE

Smoke can't come from the chimney. The council can fine the occupier £175–£300.

FUEL OR STOVE

Burn authorised smokeless fuel, or use a Defra-exempt stove with its listed fuels. Open fires: smokeless fuel only.

BUYING IT

Buying or selling unauthorised fuel for use in a non-exempt appliance there is illegal.

SOURCES

1. Approved Document J, HM Government, 2010 edition incl. 2022 amendments
2. Building Regulations consumer leaflet 2026, Solid Fuel Association
3. Guide to open fire installation 2026, Solid Fuel Association
4. Guide to lining old chimneys 2026, Solid Fuel Association
5. Twin-wall flue boxing, Stoves Online
6. Guide to installing solid fuel stoves, LABC
7. Commissioning a solid fuel appliance, building control guidance
8. Smoke and CO Alarm (Amendment) Regulations 2022
9. Awaab's Law is now in force, Chartered Institute of Housing
10. HETAS Sweep & Service Scheme conditions, Aug 2025
11. Clean Air Act 1993, legislation.gov.uk
12. Smoke control area enforcement, GOV.UK
13. Domestic solid fuels rules, GOV.UK
14. 70 years since the Great London Smog, GLA; The Great Smog of 1952, London Museum
15. Defra's 2026 solid fuel consultation, via Charnwood Borough Council

FOR THE PROPERTY FILE

THE NUMBERS & THE EVIDENCE

MINIMUM FLUE SIZE

Open fire, opening up to 500 × 550 mm	**200 mm**
Bigger open fire	**15% of opening**
Stove ≤20 kW, smoke-exempt or smokeless fuel	**125 mm**
Other stove ≤30 kW	**150 mm**
Stove 30–50 kW	**175 mm**

ADJ Table 2, para 2.7 · never smaller than the stove outlet

PERMANENT VENTILATION

Stove, pre-2008 home	**550 mm²/kW over 5 kW**
Stove, air-tight home	**550 mm²/kW**
With draught stabiliser (pre-2008)	**300/kW to 5 kW, then 850/kW**
Open fire with a throat	**50% of throat**

ADJ para 2.2, Table 1 · windows don't count

HEARTH

Constructional hearth thickness	**125 mm**
Stove: in front / each side	**225 / 150 mm**
Stove used door-open: in front	**300 mm**
Freestanding stove	**840 × 840 mm**
Open fire: in front of recess	**500 mm**

ADJ paras 2.22–2.30

CLEARANCES & OUTLET

Combustibles from inside of flue	**200 mm**
From outside of masonry chimney	**40 mm**
Outlet within 600 mm of ridge	**600 mm above**
Outlet near a window or rooflight (2.3 m)	**1 m above**
Bends from vertical (max)	**45°**

ADJ paras 1.48, 2.18, Diagram 17

CO ALARM

From the appliance	**1–3 m**
On the ceiling, from any wall	**≥300 mm**
Standard	**BS EN 50291-1**
Social landlords covered since	**1 Oct 2022**

ADJ paras 2.34–2.36 · Smoke & CO Alarm Regs 2022

EVIDENCE FOR EACH CHIMNEY

- [ ] Sweep certificate, dated before testing
- [ ] CCTV or photos of the flue
- [ ] Coring ball result, where needed
- [ ] Smoke test result, pass or fail
- [ ] Flue size against the appliance
- [ ] Install certificate & notice plate
- [ ] CO alarm fitted and tested

A plain-English summary of guidance for England, prepared November 2026. Not legal advice: each installation is assessed on site against the current Approved Document J and the manufacturer's instructions. Links in this PDF are clickable.